

| By Hasan Zaidi in Karachi |

As Chief Justice of Pakistan Ifkhar Muhammad Chaudhry arrived on March 24 at the imposing white marble Supreme Court building on Islamabad's Constitution Avenue, hundreds of lawyers showered his car with rose petals and chanted, "welcome, welcome, chief *sahib*, welcome". Other supporters danced to a brass band, waved Pakistani flags and banners and released balloons. Inside, he briefly addressed a courtroom packed with lawyers. "It is a matter of great satisfaction and a day of thanksgiving to Allah the Almighty, that after a long period the original court has been restored," he said to a standing ovation.

Chaudhry's was a triumphant return, more than 16 months after he had been summarily "dismissed" under General Pervez Musharraf's imposition of "emergency" on November 3, 2007, and two years after he first became the icon of resistance to dictatorial fiat by opposing his "suspension". He and most of Pakistan's civil society had never accepted the legitimacy of his being removed from office and he had refused to compromise with even the elected civilian Government which had reappointed most of the sacked judges of the superior courts.

His resolute refusal to negotiate on what he and the lawyers' movement considered "a matter of principle" may have irked some but also won him many admirers who believe 'truth' eventually won the day. His 'restoration' through an executive order as Pakistan's chief justice in the early hours of March 16 had come about through mounting public pressure and protests which forced the Government to reverse its stand that Musharraf's actions could not be overturned without a constitutional amendment. In many ways, Chaudhry has returned much stronger with popular backing.

But he also faces a number of complex and troubling issues as the reinstated chief justice. At the top of the list is the strange hodge-podge in the judiciary. Despite claims by lawyers that



Burden of VICTORY

Weighed down by great expectations and neck-deep in volatile politics, Chaudhry may find the going tough

the November 2 judiciary has been restored, it is now stacked with many political appointees who were made judges after November 2. When Chaudhry and many of his brother judges refused to swear an oath to the new Provisional Constitutional Order (PCO) introduced by Musharraf on November 3, 2007, they were effec-

tively sacked from the courts and their vacancies filled by other judges. Subsequently, the Pakistan Peoples Party (PPP) Government re-appointed some of the sacked judges but in order to do so without removing the Supreme Court (SC) judges already functioning, brought in a law to expand the court, which currently has